Questions to Ask About Medicaid for Mom

What to bring to a Medicaid planner, an elder law attorney and the facility's business office, with room to write what they say.

By now several people have told you something about Mom and Medicaid: someone at the facility, a neighbor, a cousin. This page sorts your questions by who can actually answer them. Bring them written down, ask them as they are, and write the answer under each one.

This guide doesn't answer the questions and doesn't say which matters most. The answers depend on Mom's situation and on the state she lives in, and the people below are the ones who can speak to it.

The facility's social worker or business office

The people where Mom is getting care now. If one of them was the first to mention Medicaid, start with what they meant.

1. Which Medicaid program in this state goes with the kind of care Mom is getting here?

2. What do Mom's records here say about the care she needs, and can we have a copy?

3. Someone here told us Mom has “too much money” or would need to “spend down.” What did they mean, and what was that based on?

The state Medicaid agency or a caseworker

The office that takes applications and makes the decision in Mom's state.

1. What does this state ask of someone applying for help with long-term care, including where she lives and her citizenship or immigration status, and where can we read it in writing?

Your family

Brothers, sisters, a spouse, and anyone who has helped Mom with her money or her paperwork.

1. What have you been told about Medicaid and Mom, and who told you?

2. What do you remember about gifts, money or property that changed hands, or a name added to an account or a deed, and roughly when?

Your Medicaid planner

The person who reviews your family's care and financial information against the Medicaid rules that apply in Mom's state and care setting.

1. Could Mom qualify for Medicaid, and what do you need from us to look at that?
2. Does Mom have too much income or too many assets? What goes into answering that in her state?
3. We've been told to “spend down.” What does that mean for Mom's situation?
4. If Mom is married: what do you need to know about her spouse and where the spouse is living?
5. What needs to happen before we apply?
6. Which of our open items can we settle by finding a paper, and which need an elder law attorney or a licensed financial professional?

An elder law attorney

For legal questions and legal documents.

1. Here is how Mom's home and her joint accounts are titled, and here is our list of gifts and transfers. Which of these raise legal questions, and what would you need to see?
2. If Mom has a trust: what would you need from us to review it?

A licensed insurance or financial professional

For questions about an insurance policy, an annuity or an investment account.

1. For each annuity or life insurance policy Mom has: who owns it, who is named on it, and can we have its details in writing?

What this guide doesn't do

It doesn't answer these questions, put them in order of importance, or say what any answer means for Mom. Skip any question that doesn't fit her situation. Medicaid rules vary by state, and nothing here is legal, financial or tax advice. Questions about eligibility go to your Medicaid planner, and legal questions go to an elder law attorney.

Ready for the next step?

You have your questions, and you know who each one belongs to. The planning interview gives the answers somewhere to go: it asks about your family's situation and gives you a free planning report you can bring to your Medicaid planner or to any conversation about paying for care.

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WHERE THIS COMES FROM

Taking questions about a state's own requirements to the state Medicaid office, which takes applications and decides eligibility, follows the Administration for Community Living. The grouping by role is ours.

1. Administration for Community Living (LongTermCare information), Medicaid
2. Administration for Community Living (LongTermCare information), Applying for Medicaid